

VICE-PRESIDENT

Important Provisions

- **Article 63:** Establishes the **Vice-President** as the **second highest office** in India.
 - Modelled on the **American Vice-President**.
- **Election**
 - **Indirect Election:** Elected by an **Electoral College** of both houses of **Parliament** (elected and nominated). Excludes state assembly members. [UPSC 2013]
- **Voting Method:** Uses **proportional representation** with a **single transferable vote** and a **secret ballot**.
- **Dispute Resolution:** Addressed by the **Supreme Court**; acts performed before a void declaration remain valid. Election cannot be challenged based on an incomplete Electoral College (Article 71).
- **Notable Fact:** Four time Vice-Presidents have been elected unopposed namely; S. Radhakrishnan (Two times), Mohammad Hidayatullah, & Shankar Dayal Sharma.
- **Nomination**
 - Requires **20 proposers** and **20 seconders**.
 - **Security Deposit:** ₹15,000 to the **RBI**.
- **Qualifications**
 - Must be a **Citizen of India**.
 - At least **35 years old**.
 - Qualified for election to the **Rajya Sabha**.
 - Must not hold any **office of profit** (current officeholders exempt).
- **Oath of Office:** Administered by the **President** or an appointed representative (Article 69).
- **Conditions of Office:** Cannot be a member of **Parliament** or state legislature; vacates seat upon assuming office. Must not hold any other **office of profit**. The term office of profit is not well defined in the constitution. [UPSC 2020]
- **Emoluments, Allowances, and Privileges:** The Constitution does not specify **emoluments** for the Vice-President in this role. Receives salary as **Chairman of the Rajya Sabha**.
- **Term of Office (Article 67)**
 - **Term:** 5 years; eligible for **re-election**.
 - Resignation to be submitted to the **President**.
 - Holds office until a successor is in place.
- **Removal: Impeachment Not Required:** Can be removed through a **Rajya Sabha** resolution passed with **effective majority**, requiring a simple majority in the **Lok Sabha**. **14 days** notice needed; no grounds specified for removal.
- **Vacancy**
 - **Causes:** Expiry of term, resignation, removal, death, disqualification, or void election.
 - Elections to fill vacancies must occur before term ends.
 - Prompt elections following resignation or removal.
- **Powers:**
 - **Ex-Officio Chairman of Rajya Sabha (Article 64):** Similar powers to the **Speaker**.
 - Acts as President (Article 65) when there's a vacancy, for a maximum of **six months** until a new President is elected.
 - When the President is unable to function, the Vice-President performs duties, with the **Deputy Chairman** taking on Rajya Sabha responsibilities.
- **Comparison with American Vice-President**
 - The **Indian Vice-President** acts as an **acting President** until a new President is elected. The **American Vice-President** succeeds directly and serves the **unexpired term**.

DIFFERENCE BETWEEN PRESIDENT AND GOVERNOR

Features	The President	The Governor
Introduction	• Part of Union Executive: Includes President, VP, PM, CoM, and Attorney General (Articles 52-78, Part V). • Role: Head of Indian State, first citizen of India, symbol of unity, integrity, and solidarity. [UPSC 2015] • Fact: Only Dr. Rajendra Prasad has served two terms.	• Part of State Executive: Includes Governor, CM, CoM, and Advocate General (Articles 153-167, Part VI). • Role: Chief Executive of the state, with a dual role: ○ Constitutional Head. ○ Agent of the Central Government. • First Woman Governor: Sarojini Naidu, Governor of Uttar Pradesh (1947-49)
Qualifications	• Citizen of India • 35+ years old • Qualified for Lok Sabha election • No office of profit	• Citizen of India • 35+ years old • Preferably an outsider to the state • President consults CM (not always followed)
Oath	• Administered by Chief Justice of India or senior-most SC judge in absence	• Administered by Chief Justice of HC of the state or senior-most judge in absence
Conditions of Office	• Not a member of either house • No office of profit	• Not a member of either house • No office of profit
Emoluments, Allowances, Privileges	• Determined by Parliament • Cannot be diminished during term • Immune from criminal proceedings (personal) • Cannot be arrested or imprisoned • 2 months' notice required in civil cases for personal acts	• Determined by Parliament • Cannot be diminished during term • Immune from criminal proceedings (personal) • Cannot be arrested or imprisoned • Allowances shared when governor of two/more states. [UPSC 2018, 2013]
Term	• 5 years from taking office • Resignation to Vice President • Can be re-elected without limit • Holds office until successor takes charge to avoid 'interregnum'	• 5 years, subject to President's pleasure • No fixed tenure • Resignation to President • Can be transferred or reappointed to same/another state • Holds office until successor takes charge to avoid 'interregnum'
Impeachment/ Removal	• For violation of Constitution (undefined) • Initiated by 1/4th members of either house with 14-day notice • 2/3 majority of total membership of house needed in both houses • Quasi-judicial process • No President impeached so far	• No specific grounds for removal by President • Not justiciable (Surya Narain case 1981) [UPSC 2013]
Vacancy	• Causes: Tenure expiry, resignation, impeachment, death • VP acts as President when vacancy occurs due to resignation, death, removal or otherwise until new election within 6 months • New President serves a full term of 5 years from taking office • No interim term for VP if President's tenure is extended beyond 5 years due to delayed elections	• Causes: Tenure expiry, resignation, death, or removal • President may appoint an interim governor until a successor assumes charge

Privileges	• Immune from arrest and personal liability for official acts • 2 months' notice required for personal legal proceedings	• Immune from arrest and personal liability for official acts • 2 months' notice for civil proceedings during term
Executive Powers	• All executive actions taken in his name. • Makes rules for authenticating orders and for business transactions of the Union. Requires PM to submit matters for CoM consideration. • Appoints commissions for SCs, STs, OBCs. Appoints inter-state council and UT administrators. Appoints PM, Ministers, AG, CAG, CEC, other election commissioners, Governors, chairpersons of commissions, UT administrators. • Declares Scheduled Areas.	• Executes state executive actions in his name. • Appoints key state officials, such as members of State Finance Commission, SPSC. • Administers union territories. • Promulgates ordinances when the state legislature is not in session. • Appoints administrators for UTs under his control.
Legislative Powers	• Integral part of Parliament. • Summons, prorogues, dissolves Lok Sabha. • Can summon joint sittings of both Houses. • Addresses Parliament at the start of each year and after general elections. • Sends messages to Parliament on bills or other issues. • Prior permission for certain bills. • Nominates 12 RS members, and used to nominate 2 LS Anglo-Indian members until 2020. • Promulgates ordinances (approved within 6 weeks). • Alters state boundaries/creates new states. • Lays reports of the Finance Commission, UPSC, and CAG. • Decisions on MP disqualification.	• Integral part of the state legislature. • Summons, prorogues, dissolves the state legislative assembly. • Addresses the state legislature after general elections and at the beginning of each year. [UPSC 2019] • Sends messages to the state legislature. • Nominates 1/6 of State Legislative Council members and used to one Anglo-Indian (until 2020). • Promulgates ordinances (approved within 6 weeks). • Lays reports of State Finance Commission, SPSC, CAG. • Decisions on disqualification of MLAs.
Financial Powers	• Prior recommendation for Money bills and demand for grants. • Lays Annual Financial Statement (Budget). • Constitutes Finance Commission every 5 years. • Advances from Contingency Fund of India.	• Prior recommendation for Money bills and demand for grants. • Lays State Budget. • Constitutes State Finance Commission every 5 years. • Makes advances from the Contingency Fund of the state.
Judicial Powers	• Appoints CJI, SC, HC judges. • Seeks SC advisory opinion (non-binding). • Grants pardon, reprieve, respite, remission, or commutation of punishment for Union law offences, court-martial sentences, and death sentences.	• Consulted by the President for HC judge appointments. • Appoints district judges in consultation with HC. • Grants pardon, reprieve, respite, remission, or commutation of punishment for offences under state laws. • Cannot pardon death sentence .

Features	The President	The Governor
Diplomatic Powers	- Negotiates and concludes international treaties (subject to Parliament's approval). Represents India in international forums, sends and receives diplomats.	No diplomatic powers.
Military Powers	Supreme Commander of India's defence forces. - Appoints Army, Navy, Air Force chiefs. - Can declare war/peace, subject to Parliament's approval.	No military powers.
Emergency Powers	Declares National Emergency (Art. 352), President's Rule (Art. 356, 365), Financial Emergency (Art. 360).	He can submit report to President regarding the Imposition of President's Rule
Veto Power	Veto Power (Art. 111): When a bill is passed by Parliament, the President has three alternatives: Give assent to the bill. Withhold assent, (which ends the bill). Return the bill for reconsideration. If Parliament passes it again, the President must give assent. Presidential Veto over State Legislation (Art. 201): When a state bill is reserved for the President's consideration: Assent, Withhold assent, which ends the bill & Return the bill for reconsideration. If passed again by the state legislature, the President is not bound to give assent. No veto for Constitutional Amendments: Since the 24th Amendment Act, 1971, the President must give assent to constitutional amendment bills. No time-limit for the President to make a decision regarding a bill presented for assent. [UPSC 2023]	- The Governor has four alternatives for ordinary bills: Give assent to the bill. Withhold assent, ending the bill. Return the bill for reconsideration (if passed again, must give assent). Reserve the bill for Presidential consideration. Money Bills: The Governor can only give or withhold assent or reserve the bill for the President. The Governor cannot return a money bill for reconsideration.
Ordinance	(Art. 123) - The President can issue ordinances when Parliament is not in session. - They must be laid before both Houses when Parliament reassembles and approved within 6 weeks to become an Act. The total validity is 6 months + 6 weeks. - Ordinances cannot amend the Constitution. Judicial Review: The 44th Amendment allows the satisfaction of the President in issuing ordinances to be questioned in court.	(Art. 213) - The Governor can issue ordinances when the state legislature is not in session. The ordinance is valid for 6 weeks after the state legislature reassembles. The total maximum life is 6 months + 6 weeks. - Ordinances must be laid before the legislature upon reassembly. - Ordinances require the President's instructions in certain cases, such as bills requiring Presidential assent. - In D.C. Wadhwa case (1987), SC held that repeated re-promulgation of ordinances is unconstitutional.

Pardoning Power	- The President (Art. 72) can grant pardons for: - Union Law offences. - Court-martial punishments. - Death sentences. - Powers are based on Cabinet advice. They are not subject to judicial review unless the decision is arbitrary or discriminatory. - Powers include commutation, remission, respite, reprieve, pardon for death sentences.	- The Governor (Art. 161) can grant pardons for: - Offences against state laws. - He cannot pardon court-martial sentences or death sentences (only the President can pardon a death sentence). - Powers include commutation, remission, respite, reprieve, but no pardon for death sentences.
Discretionary Powers	The President has no constitutional discretion. But some situational discretions include: - Appointment of PM when no clear majority exists. - Dismissal of CoM if they lose the Lok Sabha's confidence. Dissolution of Lok Sabha when CoM loses majority.	Constitutional Discretion: Reservation of bills for the President. Recommendations for President's Rule. Seeking information from the CM. - Administration of adjoining Union Territories. [UPSC 2014] Situational Discretion: - Appointment of CM when no party has a clear majority or after the death of a sitting CM. Dismissal of CoM when they lose majority. Dissolution of the Assembly if CoM loses majority.

ELECTIONS

President	Governor
Indirectly elected by an Electoral College. Reason for Indirect Election: Nominal executive role; real power lies with the PM. Direct election would be costly and time-consuming. Method: Proportional representation by single transferable vote and secret ballot. - Nomination requires 50 proposers & 50 seconders Security deposit: ₹15,000 (forfeited if 1/6th votes not secured)	Not elected by people or the Electoral College. Appointed by the President (nominee of the Central Government). Borrowed from the GOI Act 1935. Canadian Model: Governor of a state appointed by the Centre (Governor-General in Canada). 7th Constitutional Amendment (1956): Allows the appointment of one Governor for two or more states. Supreme Court (1979): Governor is not a Central Government employee; holds an independent constitutional office.

Electoral College of President: The Electoral College comprises members from **Union and States**, making the President a representative of both.

Participants: - Elected members of LS and RS. - Elected members of State Legislative Assemblies. - Elected members of Delhi and Puducherry UT Assemblies.	Non-participants: - Nominated members of LS, RS, SLA. - Members of State Legislative Councils. - Nominated members of Delhi and Puducherry Assemblies. [UPSC 2023]
--	--



VOTE VALUE IN PRESIDENT ELECTIONS

Value of Vote of an MLA: (UPSC 2018)

Value of Vote of each MLA varies from State to state.

$$\frac{\text{Total Population of State}}{\text{Total No. of elected number in SLA}} \times \frac{1}{1000}$$

Value of Vote of an MP: [UPSC 2023,2019,18]

$$\frac{\text{Total Value of votes of all MLAs of all state}}{\text{Total No. of elected members of Parliament}}$$

A candidate, in order to be declared elected to the office of President, must secure a **fixed quota of votes**:

$$\text{Electoral Quota} = \frac{\text{Total No. of valid votes polled}}{1+1} + 1$$

Disputes in President Election: Article 71(2) If the election is **declared void** by the Supreme Court, **acts done** by him before the date of such declaration are **not invalidated** and **continue to remain in force**. [UPSC 2023]

- **Article 71 (4):** If the assembly is dissolved, members cease to be qualified to vote, so the election of a person as President **cannot be challenged** on the ground that the Electoral College was incomplete. [UPSC 2023]
- According to the Constitution of India, it is the duty of the President of India to cause to be laid before the Parliament the Recommendation of the Union Finance Commission, The Report of the Comptroller and Auditor General & The Report of the National Commission for Scheduled Castes. [UPSC 2012]

• Veto Types:

- **Absolute Veto:** Permanent withholding of assent.
- **Suspensive Veto:** Returning the bill for reconsideration. If Parliament passes it again, the President must assent (not applicable to money bills).
- **Pocket Veto:** President keeps the bill pending without taking any action. No time limit exists for the President's decision, unlike in the USA (10 days)
- **Qualified Veto:** It can be overridden by the legislature with a higher majority. (In USA not in India)

• Types of Pardoning Powers:

- **Pardon:** Completely absolves the person of punishment.
- **Commutation:** Substitution of punishment with a lighter one.
- **Remission:** Reduction of punishment period without altering its nature.
- **Respite:** Lesser punishment due to special conditions.
- **Reprieve:** Temporary stay on execution.

